

24VECV03421 24VECV03421

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-06-23

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Case Number: 24VECV03421 Hearing Date: June 23, 2026 Dept: 107

SUPERIOR COURT OF THE

STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Abdul Sheikh, et al.,

Plaintiff,

v.

Melissa Giselle Gutierrez, et al.

Defendants.

Case Number Department

24VECV03421 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

to Enforce Settlement

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

This

action arises from a motor vehicle accident that occurred on August 21, 2022,

at or about 17760 Sheldon Lane, Reseda, California, 91335. (Complaint p. 5.)

On

July 18, 2024, Plaintiffs Abdul Sheikh and Rokayya Fatima ("Plaintiffs") filed

a complaint against Defendants Melissa Giselle Gutierrez, Jose Reyes, Javier

Garcia, Francisco Gutierrez, and Does 1 to 25, alleging causes of action for:

(1) motor vehicle; (2) general negligence; and (3) loss of consortium.

On

November 13, 2024, Plaintiffs filed an amendment to complaint identifying Doe 1

as Patricia Castillo.

On

December 6, 2024, Plaintiffs filed a request to dismiss Defendant Patricia

Castillo, and that Defendant was dismissed.

On

December 11, 2024, Plaintiffs filed requests to dismiss Defendants Francisco

Gutierrez and Javier Garcia, and those Defendants were dismissed.

On

June 13, 2025, Plaintiffs filed a notice of settlement of entire case.

On

February 9, 2026, the court dismissed the complaint, without prejudice,

pursuant to Code of Civil Procedure section 664.6. (02/09/26 Minute Order.)

On

March 4, 2026, Plaintiffs filed a motion for order vacating dismissal without

prejudice pursuant to Code of Civil Procedure section 473, subdivision (b) (the

"Motion to Vacate"). On May 22, 2026, the court denied the Motion to Vacate.

(05/22/26 Minute Order pp. 4-5.)

On

May 26, 2026, Plaintiffs filed a motion to enforce settlement (the "Motion").

On June 12, 2026, Defendant Melissa Giselle Gutierrez ("Defendant") filed an

opposition. As of June 17, 2026, no reply has been filed.

II.

THE

OPPOSITION

Oppositions

are due to be filed and served at least nine court days before the hearing.

(Code Civ. Proc., § 1005, subd. (b).) Defendant filed the opposition only six court days before the hearing. Thus, it is untimely.

“A trial court has

broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023)

91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the untimely opposition.

III.

LEGAL

STANDARD

Code

of Civil Procedure section 664.6, subdivision (a) states:

If parties to pending

litigation stipulate, in a writing signed by the parties outside of the

presence of the court or orally before the court, for settlement of the case,

or part thereof, the court, upon motion, may enter judgment pursuant to the

terms of the settlement. If the parties to the settlement agreement or their

counsel stipulate in writing or orally before the court, the court may dismiss

the case as to the settling parties without prejudice and retain jurisdiction

over the parties to enforce the settlement until performance in full of the

terms of the settlement.

IV.

THE

MOTION AND OPPOSITION

Plaintiffs

move for an order entering judgment pursuant to Code of Civil Procedure section

664.6. (Motion p. 6.) Plaintiffs state they entered into a binding settlement,

stating: “[h]ere, the essential terms of the settlement are not in dispute:

Integon National Insurance Company agreed to tender full policy limits, and

Defendant agreed to waive costs and expenses. Those terms were communicated to

this Court and are reflected in the record. The settlement was formed at that

moment.” (Motion p. 7.) Plaintiffs state Plaintiff Sheikh subsequently refused

to execute a formal release. (Motion p. 7.) Alternatively, Plaintiffs argue the

court should reinstate the action under Code of Civil Procedure section 473,

subdivision (b). (Motion p. 8.) Plaintiffs argue the court’s May 22, 2026,

ruling “correctly observed that counsel did not make a mistake” but the court

did not separately analyze the surprise element. (Motion p. 9.) Plaintiffs

argue counsel’s surprise warrants reinstating the action. (Motion p. 9.)

In

opposition, Defendant argues Plaintiffs misrepresent what occurred during the

February 9, 2026, hearing and ignore the court's reasoning in the May 22, 2026, order. (Opposition pp. 2-3.) Defendant further argues the court has no jurisdiction to enforce the settlement against Defendant's non-party insurance provider. (Opposition p. 3.) Defendant argues Plaintiffs are attempting to re-argue the Motion to Vacate, which the court denied. (Opposition pp. 3-4.) Finally, Defendant argues they would be prejudiced if the dismissal is vacated. (Opposition p. 4.)

V.

DISCUSSION

Code

of Civil Procedure section 664.6, subdivision (a) authorizes the court to enter judgment "pursuant to the terms of the settlement." The order must contain the material terms of the settlement. (Hines v. Lukes (2008) 167 Cal.App.4th 1174, 1185 ["We conclude that by omitting materials terms of the settlement, the order fails to accurately reflect the parties' agreement and therefore fails to comply with Code of Civil Procedure section 664.6."]) The settlement agreement is not attached as an exhibit to the Motion. (See Motion.) The proposed order references a "settlement agreement placed on the record on June 13, 2025[.]" (Proposed Order p. 2.) Other than the Order to Show Cause Hearing Re: Dismissal (Settlement), the only document filed with the court on

June 13, 2025, was the notice of settlement of entire case. The notice of settlement of entire case does not contain the terms of the settlement. Plaintiffs state “[h]ere, the essential terms of the settlement are not in dispute: Integon National Insurance Company agreed to tender full policy limits, and Defendant agreed to waive costs and expenses.

Those terms were communicated to this Court and are reflected in the record.”

(Motion p. 7.) This statement does not indicate terms such as the due date for such payment, any conditions precedent, and the ultimate settlement sum. The court cannot enter judgment pursuant to the terms of a settlement that has not been submitted to the court.

Plaintiffs

also argue the court should reinstate the action under Code of Civil Procedure section 473, subdivision (b). (Motion pp. 8-9.) The court denied Plaintiffs’

Motion to Vacate. (05/22/26 Minute Order pp. 4.-5) Plaintiffs argue the court’s

May 22, 2026, order did not analyze the surprise element. (Motion p. 9.)

However, the court stated in the May 22, 2026, order that “[t]here is no

mistake, inadvertence, surprise, or neglect by counsel leading to the

dismissal” and “[t]here is no mistake, inadvertence, surprise, or excusable

neglect by Plaintiffs here because the failure to finalize the settlement is

due to Plaintiff Sheikh’s decision to not execute the documents.” (05/22/26

Minute Order p. 4.) The court denies Plaintiffs’ request it reinstate the action

under Code of Civil Procedure section 473, subdivision (b).

VI.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: June 23, 2026 _____ Hon. Eric Harmon

Judge of the Superior

Court